

24CHCV00329 24CHCV00329

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-02

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DEFENDANT HAMID FAYAZ-RAD'S MOTION TO COMPEL FURTHER
DEPOSITION AND TESTIMONY OF PLAINTIFF SAMMY MOUSAVI/FOR LEAVE TO TAKE
SUBSEQUENT DEPOSITION; REQUEST FOR SANCTIONS

Motion filed on May 13, 2026.

MOVING PARTY: Defendant Hamid Fayaz-Rad

RESPONDING PARTY: Plaintiff Sammy Mousavi

NOTICE: OK.

RELIEF REQUESTED: Order compelling Plaintiff to appear for
further deposition testimony, or alternatively granting leave to take a
subsequent deposition, and monetary sanctions against Plaintiff and his
counsel.

RULING: Granted in part. Plaintiff shall appear for one
limited deposition session. Sanctions denied.

BACKGROUND

On February 1, 2024, Plaintiff Sammy Mousavi filed this premises liability action against Defendant Hamid Fayaz-Rad, individually and as trustee for the Fayazrad Family Trust, the Fayazrad Family Trust, and Does 1 through 50. On June 6, 2025, Defendant filed a prior motion to compel further deposition testimony. On September 15, 2025, the Court granted that motion in part, ordered Plaintiff to answer questions seven through sixteen, twenty, and twenty-two, denied the motion as to questions one through six, seventeen through nineteen, and twenty-one, and denied Defendant's request for sanctions. On March 6, 2026, the Court denied Defendant's ex parte application for clarification of the September 15, 2025 order without prejudice to noticed motion practice. Defendant filed this motion on May 13, 2026. Plaintiff opposed on June 18, 2026. Defendant replied on June 23, 2026.

DISCUSSION

"Any party may obtain discovery . . . by taking in California the oral deposition of any person, including a party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.) "[A] deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony." (Code Civ. Proc., § 2025.290, subd. (a).) "The court shall allow additional time, beyond any limits imposed by this section, if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination." (Ibid.)

The seven-hour limit is "merely presumptive" and applies only if the court does not order otherwise. (Certainteed Corp. v. Superior Court (2014) 222 Cal.App.4th 1053, 1060.) Code of Civil Procedure section 2025.290 not only authorizes the court to allow additional time, but requires it if the additional time is needed to fairly examine the deponent or if any person or circumstance impedes or delays the examination, unless the court determines the deposition should be limited for another reason. (Id. at pp. 1061-1062; Code Civ. Proc., § 2025.290, subsd. (a), (c).)

Under Code of Civil Procedure section 2025.610, once a party has taken the deposition of a natural person, that party may not take a subsequent deposition without leave of court. (Code Civ. Proc., § 2025.610, subd. (a).) The court may grant leave "for good cause shown." (Code Civ. Proc., § 2025.610, subd. (b).) "Good cause requires a showing of 'specific facts

justifying discovery,' and the objective of such discovery is not merely the discovery of admissible evidence but also effective preparation for trial and the prevention of surprise at trial." (Associated Brewers Distributing Co. v. Superior Court (1967) 65 Cal.2d 583, 586-588.)

Here, Defendant has shown that limited additional time is needed to fairly examine Plaintiff and that the prior examination was impeded or delayed, but not that an unrestricted subsequent deposition is warranted. Plaintiff has appeared for three deposition sessions. Volume III was limited to the questions compelled by the Court's September 15, 2025 order, and Plaintiff answered those questions. (Page Decl. ¶ 10, Ex. F.) Defendant identifies remaining areas of examination, including the incident, Plaintiff's claimed injuries, prior and post-incident medical history and treatment, and damages. (Mot. at pp. 4-5, 8.) Defendant does not show specific facts justifying discovery broader than the limited further examination ordered here. (Associated Brewers, *supra*, 65 Cal.2d at pp. 586-588; Code Civ. Proc., § 2025.610, subd. (b).)

Defendant contends Plaintiff provided five hours and twenty-five minutes of testimony in Volumes I and II, and that Volume III took approximately 30 minutes. (Page Decl. ¶¶ 9-10.) Plaintiff contends the first two sessions totaled six hours and fifteen minutes, leaving approximately 45 minutes before reaching seven hours, and that Volume III took approximately 20 minutes, leaving approximately 25 minutes before reaching the seven-hour presumptive limit. (O'Hara Decl. ¶¶ 7-9.) Thus, under either calculation, the deposition had not reached seven hours of total testimony under Code of Civil Procedure section 2025.290, subdivision (a). The record also reflects that the examination was impeded or delayed by Farsi interpretation, technical or audio issues, objections, and colloquy. (Page Decl. ¶¶ 9-11.) The Volume III transcript also shows that part of that session was consumed by record statements, objections, and colloquy rather than examination. (Page Decl., Ex. F.) The Court finds limited additional time is therefore needed to fairly examine Plaintiff. (Code Civ. Proc., § 2025.290.)

Plaintiff argues Defendant forfeited any further questioning because defense counsel suspended Volume II over objection, did not state that the suspension was to seek a protective order, and did not file a protective order motion. Section 2025.470 governs suspension of testimony so a party or deponent may seek protective relief. (Code Civ. Proc., § 2025.470.) Where a deponent fails to answer, however, the examining party may complete the

deposition on other matters or adjourn the deposition and move to compel answers. (Code Civ. Proc., § 2025.460, subd. (e).)

Here, defense counsel ended Volume II after Plaintiff's counsel instructed Plaintiff not to answer and after stating he would seek a discovery referee or special master and move to compel. (O'Hara Decl., Ex. C at 134:24-135:11.) Defendant then filed the prior motion, which the Court granted in part. The Court's March 6, 2026 order later denied ex parte relief and made no determination regarding the permissible duration or scope of further questioning under section 2025.290. (Page Decl., Ex. E.)

Plaintiff's reliance on *Safechuck v. MJJ Productions, Inc.* (2023) 94 Cal.App.5th 675 does not require a different result. *Safechuck* affirmed, for abuse of discretion, the denial of a deposing party's motion to compel a further deposition of a nonparty witness and the sanctions imposed on that party's counsel, on the grounds that counsel failed to meet and confer in good faith and reacted disproportionately to opposing counsel's conduct. (Id. at pp. 699-700.) The deposing party's failure to state a protective-order purpose for the suspension was a secondary consideration, not the basis of the ruling. (Id. at p. 700 & fn. 5.) *Safechuck* announced no rule that an irregular suspension forfeits the statutory examination time or bars a later motion to compel further testimony.

The Court finds good cause to permit an additional deposition session of Plaintiff limited to 90 minutes of on-the-record testimony, subject to the limitations ordered below. To the extent that time exceeds Plaintiff's calculation of remaining time before reaching seven hours of total testimony, the additional time is warranted because the prior examination was impeded or delayed within the meaning of section 2025.290.

Sanctions

Both sides request monetary sanctions. Defendant seeks sanctions under Code of Civil Procedure sections 2023.010, 2023.030 and 2025.480, subdivision (j). Plaintiff seeks sanctions under Code of Civil Procedure sections 2023.020, 2023.030, and 2025.480, subdivision (j). The Court grants limited further deposition testimony under Code of Civil Procedure section 2025.290. Section 2025.290 does not independently require sanctions.

Defendant was substantially justified in seeking noticed

relief because the March 6, 2026 order left the section 2025.290 issue unresolved, the prior record included instructions not to answer that the Court partially rejected, and both sides' calculations show some deposition time remained. Plaintiff was substantially justified in opposing broader relief because the September 15, 2025 order was limited to specified questions, Plaintiff appeared for Volume III, and the parties had a legitimate dispute regarding the effect of the end of Volume II.

Both requests for monetary sanctions are denied.

CONCLUSION

Defendant's motion is granted in part. Plaintiff Sammy Mousavi shall appear for an additional deposition session within 30 days of notice of this order, at a mutually agreeable date, time, and location arranged by counsel. If the parties cannot agree, Defendant may serve a deposition notice consistent with this order and the Code of Civil Procedure.

The deposition is limited to 90 minutes of on-the-record testimony. The examination is limited to the alleged incident, Plaintiff's claimed injuries, prior medical history and treatment reasonably related to the claimed injuries, post-incident treatment, and claimed damages. This Court's September 15, 2025 order remains in effect. Defendant may not re-ask questions as to which that order denied compulsion.

Counsel shall not use the final session for opening statements, record speeches, speaking objections, or colloquy. Objections shall be stated concisely. Defendant's counsel shall ask nonduplicative, nonargumentative questions within the scope of this order.

Defendant's request for monetary sanctions is denied.
Plaintiff's request for monetary sanctions is denied.